Given these circumstances, many were convinced that far from enabling 'the true purpose of the Constitution' as Nehru believed, the amendment was an executive power grab to expand the government's legal arsenal and augment Nehru's own power as Prime Minister – a part of an 'executive struggle and search for constitutional pre-eminence'[46] conducted in the grey zone before India had its first election and became a functioning democracy. A prominent newspaper noted: 'These [constitutional] changes seem animated more by a desire to conserve and consolidate the power and patronage of the executive vis-à-vis the rights and liberties of the individual.'[47] Others went further – noting that the amendment demonstrated either India's unfitness for democratic rule or the inability of its rulers to govern within constitutional bounds.[48]

In amending something as central as Fundamental Rights, many believed, Nehru was guided by a partisan political agenda and was, wittingly or unwittingly, laying the constitutional groundwork for potential executive despotism[49] – in the process, creating legal tools and political precedents that could one day be wielded by his ideological opponents. It was this fear – that the expansive notion of republican freedom that the courts had delineated over the previous year could be jeopardized for all time – that led Mookerjee to deliver his prophetic warning: 'Maybe you will continue for eternity, in the next generation, for generations unborn; that is quite possible. But supposing some other party comes into authority? What is the precedent you are laying down?'

Seventy years on, Nehru's legal tools, created through the First Amendment and described as his gift to the succeeding generations, have come to be a central focus of political discourse and point of contestation in India. In this renewed contestation over foundational questions, Mookerjee's arguments are being redeployed by his erstwhile opponents – demonstrating the long afterlife of this debate and the eternally shifting sands of Indian politics.